

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Robert Bryan	Team: Squad #10	CCRB Case #: 202000843	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 12/04/2019 5:45 AM	Location of Incident: Inside house § 87(2)(b) Apartment 4A	18 Mo. SOL 1/19/2022	Precinct: 47		
Date/Time CV Reported Fri, 01/31/2020 2:36 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 01/31/2020 2:36 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Christophe Heredia	01339	938656	WARRSEC
2. SGT Michael Connizzo	01391	932485	WARRSEC
3. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Billy Acosta	00031	913910	WARRSEC
2. DT3 John Ambrosino	807	949998	WARRSEC
3. DT3 Kyle Hurst	4929	952872	WARRSEC
4. DT3 Brendan Bradley	1507	950100	WARRSEC
5. POM Paul Hoppinthal	11457	960678	WARRSEC
6. PO Sean Leone	08289	957765	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Christophe Heredia	Abuse: Detective Christopher Heredia entered § 87(2)(b) in the Bronx.	A . Unsubstantiated
B . SGT Michael Connizzo	Abuse: Sergeant Michael Connizzo entered § 87(2)(b) in the Bronx.	B . Unsubstantiated
C . DT3 Christophe Heredia	Force: Detective Christopher Heredia pointed his gun at § 87(2)(b)	C . Exonerated
D . DT3 Christophe Heredia	Force: Detective Christopher Heredia pointed his gun at § 87(2)(b)	D . Exonerated
E . DT3 Christophe Heredia	Force: Detective Christopher Heredia pointed his gun at § 87(2)(b)	E . Exonerated
F . Officers	Force: Officers pointed his/her gun at § 87(2)(b)	F . Exonerated
G . Officers	Force: Officers pointed his/her gun at § 87(2)(b)	G . Exonerated
H . Officers	Force: Officers pointed his/her gun at § 87(2)(b)	H . Exonerated
I . Officers	Discourtesy: Officers spoke discourteously to § 87(2)(b)	I . Officer(s) Unidentified
J . Officers	Discourtesy: Officers spoke discourteously to § 87(2)(b)	J . Officer(s) Unidentified
K . Officers	Discourtesy: Officers spoke discourteously to § 87(2)(b)	K . Officer(s) Unidentified
L . DT3 Christophe Heredia	Discourtesy: Detective Christopher Heredia spoke discourteously to § 87(2)(b)	L . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
M . DT3 Christophe Heredia	Abuse: Detective Christopher Heredia refused to show the arrest warrant to § 87(2)(b)	M . Unsubstantiated
N . DT3 Christophe Heredia	Force: Detective Christopher Heredia used physical force against § 87(2)(b)	N . Unsubstantiated
O . DT3 Christophe Heredia	Force: Detective Christopher Heredia used physical force against § 87(2)(b)	O . Unsubstantiated
P . Officers	Force: Officers used physical force against § 87(2)(b)	P . Officer(s) Unidentified
Q . Officers	Force: Officers used physical force against § 87(2)(b)	Q . Officer(s) Unidentified
R . Officers	Abuse: Officers searched § 87(2)(b) in the Bronx.	R . Officer(s) Unidentified
S . DT3 Christophe Heredia	Abuse: Detective Christophe Heredia searched § 87(2)(b) in the Bronx.	S . Unsubstantiated
T . DT3 Christophe Heredia	Abuse: Detective Christophe Heredia damaged § 87(2)(b)'s property.	T . Unsubstantiated

Case Summary

On January 31, 2020, § 87(2)(b) called the CCRB and filed the following complaint. At approximately 5:45 a.m. on December 4, 2019, § 87(2)(b) was asleep in the apartment he shares with his mother and sister at § 87(2)(b) in the Bronx. Neither his mother nor his sister was home, but § 87(2)(b)'s friends § 87(2)(b) and § 87(2)(b) were sleeping on a couch in the living room. Det. Christopher Heredia of Warrant Squad opened the front door and immediately, followed by Sgt. Michael Connizzo, Det. John Abrosino, Det. Billy Acosta, Det. Kyle Hurst, Det. Brendan Bradley, PO Sean Leone, and PO Paul Hoppinthal, all of the Warrant Squad (**Allegations A-B – Abuse of Authority – Entry of Premises; unsubstantiated**). All the officers had their guns drawn and pointed (**Allegations C-H – Force – Gun Pointed; exonerated**). The officers all said, “Freeze! Get the fuck on the ground!” Det. Heredia said to § 87(2)(b) “Get the fuck on the ground, asshole” (**Allegations I-k – Discourtesy – Word; officers unidentified**) and (**Allegations L – Discourtesy – Word; Unsubstantiated**). § 87(2)(b) allegedly asked to see a warrant, but Det. Heredia did not provide one (**Allegation M – Abuse of Authority – Refusal to show arrest warrant; unsubstantiated**). Det. Heredia grabbed § 87(2)(b)'s left arm and twisted it behind his back, and forcibly pushed him down until § 87(2)(b) was lying on the ground and knelt § 87(2)(b) in his ribs (**Allegations N-O – Force – Physical Force; unsubstantiated**). Two officers threw § 87(2)(b) and § 87(2)(b) on the ground and handcuffed them (**Allegations P-Q – Force – Physical Force; officers unidentified**). Other officers searched the apartment, emptying out the cabinets in § 87(2)(b)'s room and his mother's room and threw their contents onto the ground (**Allegations R – Abuse of Authority – Search of Premises; officers unidentified and Allegations S – Abuse of Authority – Search of Premises; Unsubstantiated**). During the search, Det. Heredia broke the door of § 87(2)(b)'s refrigerator while trying to break it open to see if there was anything hidden inside the door (**Allegation T – Abuse of Authority – Property Damaged; unsubstantiated**). § 87(2)(b) and § 87(2)(b) were arrested § 87(2)(b).

No BWC or other footage was recovered for this incident. § 87(2)(g)

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective Christopher Heredia entered § 87(2)(b) in the Bronx.

Allegation (B) Abuse of Authority: Sergeant Michael Connizzo entered § 87(2)(b) in the Bronx.

§ 87(2)(b) stated that he was asleep in the apartment he shares with his mother and sister at § 87(2)(b) in the Bronx. Neither his mother nor his sister was home, but § 87(2)(b)'s friends § 87(2)(b) and § 87(2)(b) were sleeping on a couch in the living room. The sound of someone fiddling with his lock woke § 87(2)(b) up, so he approached the front door. When he was about ten feet from the front door, an officer opened the front door and immediately entered along with approximately nine other officers. Nobody asked § 87(2)(b) for permission to enter, and he did not provide permission. He could not see which officer opened the door because the lights were out. § 87(2)(b) was not sure how the officers opened the door but suspected that he got a key from the building's superintendent (**Board Review 01**).

§ 87(2)(b) and § 87(2)(b) were unavailable to the investigation.

Det. Heredia (**Board Review 02**) stated that he arrived at the apartment with Det. Acosta, Sgt. Connizzo, Det. Ambrosino, PO Leone, and others from Manhattan Warrant Squad, though he could

not recall how many others or their names. There was no search warrant for the location (**Board Review 05**). The apartment belonged to § 87(2)(b) who was on parole and had a warrant out for him, but Det. Heredia was looking specifically for § 87(2)(b) who the subject of a parole warrant § 87(2)(b).

Det. Heredia did not know § 87(2)(b) or anything about him. Due to § 87(2)(b)'s criminal history, Det. Heredia believed there was potential for violence, and he had credible information from another detective from Bronx Central Robbery (he did not recall who) that § 87(2)(b) lived in the apartment, which belonged to § 87(2)(b). The information led Det. Heredia to believe that § 87(2)(b) was living with § 87(2)(b) not staying there temporarily, though he did not know how long he had been living there. Det. Heredia did not know the original source of this information and there were no other factors that led to his believing § 87(2)(b) lived there. § 87(2)(f)

Det. Heredia and the other officers used the key to open the door and one of the officers entered first, though he could not recall which one (**Board Review 02**).

The other officers' statements were consistent with Det. Heredia's. None of the other officers had additional information about the source of Det. Heredia's belief that § 87(2)(b) was living at the location (**Board Review 03, 04, 06, and 07**).

The DD5s for § 87(2)(b)'s arrest warrant show that Det. Heredia visited several locations while searching for § 87(2)(b) including § 87(2)(b), which is listed as § 87(2)(b)'s address, and § 87(2)(e) § 87(2)(b) § 87(2)(f).

After two DD5s marking conferrals with detectives from Bronx Robbery Squad (one with Det. Cordero and another with Det. Bradshaw), a final DD5 notes that § 87(2)(b) was apprehended at the incident location on December 4, 2019. § 87(2)(b)'s active parole warrant § 87(2)(b) was listed as active September 12, 2019 and canceled on December 7, 2019 following this incident (**Board Review 08**). § 87(2)(b) also had an active warrant arrest warrant issued on December 3, 2019 and cancelled on December 5, 2019 following this incident. § 87(2)(b) had a warrant issued on the date of this incident, December 4, 2019, that was listed as active (**Board Review 05**).

§ 87(2)(g)

Det. Heredia acknowledged that there was no search warrant for the location, and that the officers were there specifically for § 87(2)(b) who had an active parole warrant at the time of this incident. § 87(2)(e)

The DD5s also documented him conferring with detectives from other units prior to the incident, which was consistent with his statement. However, the information shared during these conferrals was not documented in the DD5s. § 87(2)(g)

Therefore, it is recommended that **Allegations A-B** be **unsubstantiated**.

Allegation (C) Force: Detective Christopher Heredia pointed his gun at § 87(2)(b)

Allegation (D) Force: Detective Christopher Heredia pointed his gun at § 87(2)(b)

Allegation (E) Force: Detective Christopher Heredia pointed his gun at § 87(2)(b)

Allegation (F) Force: Officers pointed their guns at § 87(2)(b)

Allegation (G) Force: Officers pointed their guns at § 87(2)(b)

Allegation (H) Force: Officers pointed their guns at § 87(2)(b)

§ 87(2)(b) stated Mr. Heredia and all the other officers had their guns drawn when they entered the apartment (**Board Review 01**). In a follow-up statement, § 87(2)(b) clarified that they all pointed their guns at § 87(2)(b) and § 87(2)(b) (**Board Review 09**).

Det. Heredia entered second with his gun drawn and pointed, as did the other officers (**Board Review 02**). The other officers present did not recall if they drew or pointed their guns during the incident (**Board Review 03, 04, 06, and 07**).

NYPD Patrol Guide, Procedure 221-01 states that officers may discharge a firearm to prevent or terminate the unlawful use of force that may cause death or serious physical injury, but that the decision to display or draw a firearm should be based on an articulable belief that the potential for serious physical injury is present (**Board Review 10**).

Because Det. Heredia acknowledged pointing his weapon, **Allegations C-E** were pleaded against him. Although Det. Heredia stated that other officers also entered with their guns pointed, the other officers interviewed did not recall if their guns were pointed. Absent additional testimony or video evidence, the investigation was unable to which officers pointed their guns at which specific individual and thus **Allegations F-H** were pleaded against officers.

§ 87(2)(g)

Therefore, it is recommended that **Allegations C-H** be **exonerated**.

Allegation (I) Discourtesy: Officers spoke discourteously to § 87(2)(b)

Allegation (J) Discourtesy: Officers spoke discourteously to § 87(2)(b)

Allegation (K) Discourtesy: Officers spoke discourteously to § 87(2)(b)

Allegation (L) Discourtesy: Detective Christopher Heredia spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that when the officers entered they all yelled, “Freeze! Get the fuck on the ground!” Later, after Det. Heredia forcibly took § 87(2)(b) to the ground, he said to § 87(2)(b) “Get the fuck on the ground, asshole” (**Board Review 01**).

None of the officers present recalled themselves or any other officers using profanity at any point during the incident (**Board Review 02, 03, 04, 06, and 07**).

§ 87(2)(g)

it is recommended that **Allegations I-K** be closed as **officers unidentified**, and that **Allegation L** be **unsubstantiated**.

Allegation (M) Abuse of Authority: Detective Christopher Heredia refused to show the arrest warrant to § 87(2)(b)

§ 87(2)(b) stated that when the officers first entered his apartment, he asked to see a warrant, but the officers did not provide one. After he was handcuffed, § 87(2)(b) again asked for a warrant, but Det. Heredia and the officers kept telling him that they had it downstairs in the van. Nobody clarified if it was a search warrant or an arrest warrant, or what they were looking for (**Board Review 01**).

Det. Heredia did not recall anyone in the apartment asking to see a warrant, but there was no warrant to show because no one had a copy. None of the other officers present recalled a civilian asking for a warrant or an officer refusing to provide one (**Board Review 02, 03, 04, 06, and 07**).

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation M** be **unsubstantiated**.

Allegation (N) Force: Detective Christopher Heredia used physical force against § 87(2)(b)

Allegation (O) Force: Detective Christopher Heredia used physical force against § 87(2)(b)

§ 87(2)(b) stated that Det. Heredia grabbed § 87(2)(b)'s left arm, twisted it behind his back, and forcibly pushed him down until § 87(2)(b) was lying on the ground. While doing this, he knelt § 87(2)(b) in his ribs, though § 87(2)(b) was not resisting. Det. Heredia handcuffed § 87(2)(b) and continued to knee him in the ribs (**Board Review 01**).

Det. Heredia stated that when he entered the apartment, he observed § 87(2)(b) and § 87(2)(b) standing in the living room about 15 feet from the front door. He ordered them to show their hands and lie on the ground face down, which they did. He handcuffed § 87(2)(b) while other officers handcuffed § 87(2)(b) and § 87(2)(b) though he could not recall which officer handcuffed whom (**Board Review 02**). Det. Ambrosino stated that either he or Det. Heredia handcuffed § 87(2)(b) after he stood up. § 87(2)(b) did not resist and no force was used to handcuff him. Det. Ambrosino did not recall how the other two civilians were handcuffed but did not see anyone being thrown on the ground or lying on the ground at any point. He never came to learn who handcuffed § 87(2)(b) or § 87(2)(b) (**Board Review 06**). Det. Bradley and Sgt. Connizzo both stated that by the time they entered the apartment, § 87(2)(b) and § 87(2)(b) had already been handcuffed. Neither Det. Heredia nor any of the officers interviewed recalled him using any physical force to handcuff § 87(2)(b) (**Board Review 02, 03, 04, 06, and 07**).

§ 87(2)(g)

it is recommended that **Allegations N-O** be **unsubstantiated**.

Allegation (P) Force: Officers used physical force against § 87(2)(b)

Allegation (Q) Force: Officers used physical force against § 87(2)(b)

§ 87(2)(b) stated that as Det. Heredia was taking him to the ground and handcuffing him, two other officers (he did not recall which ones) threw § 87(2)(b) and § 87(2)(b) on the ground and handcuffed them. Neither § 87(2)(b) nor § 87(2)(b) resisted

None of the officers present recalled using physical force during the incident or witnessing any other officers use physical force (**Board Review 02, 03, 04, 06, and 07**).

§ 87(2)(g)

It is therefore recommended that **Allegations P-Q** be closed as **officers unidentified**.

Allegation (R) Abuse of Authority: Officers searched § 87(2)(b) in the Bronx.

Allegation (S) Abuse of Authority: Detective Christophe Heredia searched § 87(2)(b) in the Bronx.

§ 87(2)(b) stated that once the officers checked the whole apartment to make sure nobody else was present, they put away their guns. Officers emptied out the cabinets in § 87(2)(b)'s room and his mother's room and threw their contents onto the ground, though he did not recall which officer did what. Det. Heredia broke the door of § 87(2)(b)'s refrigerator while trying to break it open to see if there was anything hidden inside the door. Officers also searched the closets, the living room, and the bathroom. One of the officers found a gun in between the cushions of the couch (**Board Review 01**).

Det. Heredia stated that he after the three civilians were handcuffed, he searched the bedroom near the living room to see if anyone else was there, and only looked for places that were big enough to potentially hide a person, such as behind doors, in closets, and under the bed. He did not look in any cabinets or empty out any cabinets and did not see any other officer do this. He did not recall anyone search the refrigerator or who searched the kitchen and did not recall if he searched the kitchen. Det. Heredia said the gun recovered from the couch cushions was in plain view when it was found (**Board Review 02**).

The testimony of the other officers present was consistent with Det. Heredia's, and none of the officers recalled searching an area that was too small to hide a person, such as a cabinet, or seeing any other officer do this. None of the officers disputed that the gun recovered was in plain view (**Board Review 03, 04, 06, and 07**).

In executing an arrest warrant, police officers are permitted to conduct protective sweeps in order to ensure their safety. Evidence found in plain view may be recovered. People v. Harrell, 208 A.D.2d 647 (1994) (**Board Review 16**).

§ 87(2)(g)

It is therefore recommended that **Allegation R** be closed as **officers unidentified** and **Allegation S** be **unsubstantiated**.

Allegation (T) Abuse of Authority: Detective Christopher Heredia damaged § 87(2)(b)'s property.

§ 87(2)(b) stated that Det. Heredia broke the door of his refrigerator while trying to break it open to see if there was anything hidden inside the door (**Board Review 01**).

Det. Heredia did not recall breaking the refrigerator door or looking inside it, and neither he nor any of the other officers present recalled an officer doing this (**Board Review 02, 03, 04, 06, and 07**).

§ 87(2)(g)

it is recommended that **Allegation T** be **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) or § 87(2)(b) has been a party (**Board Review 11, 17, and 18**).
- Det. Heredia has been a member of service for 16 years and has been named as a subject in 11 prior CCRB complaints comprised of 28 allegations, one of which was substantiated.
 - § 87(2)(g) Case 201905329 involved a substantiated allegation of refusal to provide a right to know act card. The board recommended Command Discipline A and the NYPD imposed Command Discipline A.
- Sgt. Connizzo has been a member of service for 18 years and has been named as a subject in 4 prior CCRB complaints comprised of 19 allegations, none of which were substantiated.
 - § 87(2)(g)
- Det. Acosta has been a member of service for an unknown period of time and has been named as a subject in 4 prior CCRB complaints comprised of 13 allegations, none of which was substantiated. § 87(2)(g)
- Det. Ambrosino has been a member of service for 10 years and has been named as a subject in 9 prior CCRB complaints comprised of 131 allegations, two of which were substantiated.
 - § 87(2)(g) Case 201905329 involved a substantiated allegation of an entry of premises and a substantiated allegation of a search of premises. The board recommended charges and the NYPD has not yet imposed discipline.
- Det. Hurst has been a member of service for 9 years and has been named in a subject in 5 prior CCRB complaints comprised of 25 allegations, none of which were substantiated.
 - § 87(2)(g)
- Det. Bradley has been a member of service for 10 years and has been named in a subject in 3 prior CCRB complaints comprised of 15 allegations, none of which were substantiated.
 - § 87(2)(g)
- Det. Hoppinthal has been a member of service for five years and has been named in a subject in 2 prior CCRB complaints comprised of 14 allegations, none of which were substantiated. § 87(2)(g)

investigation.

- Det. Leone has been a member of service for 6 years and has been named as a subject in 2 prior CCRB complaints comprised of 12 allegations, none of which were substantiated.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- This complaint was unsuitable for mediation.
- As of December 16, 2021, the NYC Office of the Comptroller had no record of a Notice of Claim being filed regarding to this incident (**Board Review 16**).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad 10

Investigator:	<u>Robert Bryan</u>	<u>Inv. Bryan</u>	<u>1/11/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>§ 87(2)(b) Rigie</u>	<u>IM § 87(2)(b) Rigie</u>	<u>1/12/2022</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date